

Manual 38 — Implementação Controlada da FERPA

****Linha de base controlada:**** Family Educational Rights and Privacy Act, 20 U.S.C. § 1232g, e 34 CFR Part 99.

****Limite:**** orientação do Department of Education, leis estaduais de privacidade estudantil, contratos, grants e práticas organizacionais permanecem separadas do estatuto e regulamento FERPA.

****Regra de release:**** reverificar e-CFR Part 99 vigente e fontes do Department ao congelar o candidato.

Chapter 01 — Objetivo, escopo e hierarquia controlada de fontes

Estabeleça escopo FERPA, fontes autoritativas, ownership e change control. Não trate guidance, lei estadual ou termos contratuais como regulação FERPA.

Mantenha registro de aplicabilidade, fontes, responsáveis, change watch e índice de evidências.

Chapter 02 — Aplicabilidade FERPA e education records cobertos

Determine se organização, população estudantil, registro e atividade estão dentro da FERPA. Documente exclusões, populações especiais e registros fora da definição aplicável.

Preserve decisões de aplicabilidade, classificação, inventários, custodians e evidência de review quando houver ambiguidade.

Chapter 03 — Eligible student, pais e transições de autoridade

Defina quando os pais exercem direitos e quando estes passam ao eligible student. Considere nível educacional, idade, attendance, representação e autoridade válida.

Mantenha registros de autoridade, triggers de transição, identity controls e escalations.

Chapter 04 — Inventário de education records e data-flow mapping

Inventarie repositories, aplicações, paper files, communications, integrations, backups, archives e plataformas de terceiros com possíveis education records.

Mantenha data-flow diagrams, owners, locations, purposes, categories, access paths, transfer points e retention dependencies.

Chapter 05 — Classificação de registros e regras de handling

Defina classes operacionais para FERPA-covered records e diferencie directory information, sole-possession, law-enforcement-unit, employment, treatment, alumni e outras categorias conforme aplicável.

Mantenha regras, exemplos, decisões, exceptions e change history.

Chapter 06 — Governance, accountability e policy ownership

Atribua funções executivas, privacy, records, security, registrar, legal, academic, IT, procurement e operations. Defina approvals, escalation, risk acceptance e management review.

Mantenha RACI, policy approvals, control owners, exception logs e corrective actions.

Chapter 07 — Aviso de direitos FERPA

Defina como o notice de direitos é preparado, aprovado, entregue, tornado acessível e atualizado para estudantes/pais aplicáveis.

Mantenha versões, publication dates, delivery evidence, accessibility review e decisões de language support.

Chapter 08 — Governance de consentimento

Implemente processo controlado para obter/documentar consentimento quando necessário. Registre records, purpose, recipients, authorization, date e revocation handling.

Mantenha consent forms, electronic evidence, identity validation e exception rationale.

Chapter 09 — Framework de decisão para disclosure exceptions

Exija análise documentada antes de usar uma exceção de divulgação sem consentimento. Evite tratar exceptions como permissões gerais.

Mantenha source citation, purpose, data scope, recipient, conditions, duration, approval e reassessment triggers.

Chapter 10 — School official e legitimate educational interest

Quando esta exceção for utilizada, defina critérios para school officials e legitimate educational interests, inclusive contractors/vendors quando aplicável.

Mantenha criteria, annual-notice alignment, contracts, use restrictions, approvals, oversight e termination controls.

Chapter 11 — Governance de directory information

Defina designações institucionais, notice, opt-out, suppression controls, timing e downstream handling.

Mantenha designation decisions, notices, opt-outs, suppression flags, disclosure controls e periodic testing.

Chapter 12 — Access and inspection requests

Implemente workflow documentado para pais ou eligible students inspecionarem/revisarem education records nos prazos e condições aplicáveis.

Mantenha request logs, identity/authority validation, search records, responsive-record inventories, timing, communications e closure.

Chapter 13 — Amendment requests e hearings

Defina processos para pedidos de amendment de registros dentro do framework FERPA, incluindo escalation e hearing quando aplicável.

Mantenha requests, determinations, evidence, hearing records, statements, notices e timing metrics.

Chapter 14 — Identity, authentication e representative access

Aplique verificação proporcional de identidade e autoridade antes de permitir acesso ou aceitar rights requests. Evite coleta excessiva de verification data.

Mantenha verification method, representative authority, failed-verification handling, secure delivery e audit evidence.

Chapter 15 — Disclosure recordkeeping

Mantenha records exigidos de disclosures e requests for disclosures, incluindo parties, legitimate interests e downstream conditions quando aplicável.

Defina system of record, retention, linkage, exceptions, quality checks e access controls.

Chapter 16 — Redisclosure restrictions e downstream controls

Quando aplicáveis, comunique redisclosure conditions e mantenha mecanismos para prevenir/detectar unauthorized onward disclosure.

Mantenha disclosure terms, recipient acknowledgements, contracts, permitted-purpose evidence, incident escalation e corrective actions.

Chapter 17 — Studies exception governance

Exija applicability documentada, written agreements quando necessários, purpose limitation, data minimization, security, destruction requirements e oversight.

Mantenha study approvals, agreements, data inventories, access lists, destruction evidence e closeout records.

Chapter 18 — Audit/evaluation exception governance

Documente authorized representatives, program/legal authority, purpose, data scope, written terms quando necessários, safeguards e destruction requirements.

Mantenha authorization, agreements, transfer records, oversight, destruction evidence e issue logs.

Chapter 19 — Financial-aid disclosures

Quando usada a exceção, documente purpose aplicável e limite disclosure a eligibility, amount, conditions ou enforcement conforme aplicável.

Mantenha purpose records, recipient authorization, data minimization e disclosure logs.

Chapter 20 — Health or safety emergency decisions

Estabeleça processo documentado para disclosures sob a exceção de emergency, incluindo análise de articulable and significant threat quando aplicável.

Mantenha decision evidence, threat rationale, recipients, data disclosed, timing, decision authority e post-event review.

Chapter 21 — Judicial orders e lawfully issued subpoenas

Encaminhe court orders, subpoenas e demandas similares para controlled legal/privacy review. Determine notice requirements e exceptions antes da disclosure.

Mantenha demand intake, validation, legal analysis, notice determination, record scope, production evidence e closure.

Chapter 22 — Vendor e third-party lifecycle governance

Aplique FERPA-specific due diligence a vendors que recebam, mantenham, processem ou acessem education records. Avalie purpose, access, control, redisclosure, security, subcontractors, retention, deletion e incident terms.

Mantenha vendor inventory, applicability assessment, contract checklist, approvals, monitoring e termination evidence.

Chapter 23 — Cloud, SaaS, analytics e digital learning platforms

Mapeie responsabilidades FERPA em cloud, SaaS, LMS, collaboration, analytics, AI e digital-learning services. Documente data flows, roles, defaults, telemetry, exports e secondary-use risks.

Mantenha architecture diagrams, settings baselines, data-use assessments, integration approvals e exit plans.

Chapter 24 — Security safeguards e access governance

Implemente safeguards administrativos, técnicos e físicos baseados em risco. Mantenha separados os requisitos de privacy FERPA e outras obrigações de security que possam coexistir.

Mantenha access matrices, authentication, encryption decisions, logging, vulnerability management, secure configuration e corrective actions.

Chapter 25 — Incident response e unauthorized disclosure

Integre potenciais incidentes FERPA a incident response, evidence preservation, legal/privacy analysis, contract notification, state-law analysis e Department-facing processes quando aplicável.

Mantenha incident records, affected-record analysis, decisions, communications, remediation e lessons learned.

Chapter 26 — State student-privacy e sector overlays

Mantenha overlay process separado para student-data laws estaduais, K-12, higher education, licensure, grants e outros regimes aplicáveis.

Não represente overlay duties como FERPA duties. Mantenha applicability matrices, sources, conflicts, owners e implementation decisions.

Chapter 27 — Retention, deletion, archival e defensible disposal

Defina retention/disposal com base em requisitos legais, records, litigation holds, accreditation, contracts e business needs. Não apresente FERPA como retention schedule universal.

Mantenha schedules, holds, deletion approvals, archive controls, vendor deletion evidence e disposal records.

Chapter 28 — Training e role competence

Forneça role-based training para pessoal que lida com education records, rights requests, disclosures, vendor oversight, security, records management e emergency decisions.

Mantenha curricula, completion evidence, role mapping, competency checks e remediation.

Chapter 29 — Assurance, testing e audit evidence

Teste controles FERPA com amostras de notices, consents, disclosures, exception decisions, requests, vendor records, access controls, incident handling e deletion evidence.

Mantenha test plans, samples, results, findings, root causes, corrective actions, retests e management reporting.

Chapter 30 — Metrics, management review e continual improvement

Defina indicadores de request timeliness, unresolved exceptions, vendor findings, disclosure-record quality, access-review exceptions, training completion, incidents, remediation aging e change-watch status.

Management review deve registrar decisões, recursos, risk acceptance, corrective actions e improvement priorities.

Chapter 31 — Exact-hash, localization, provenance e release evidence

Congele candidatos EN/es-419/pt-BR antes de substantive review. Vincule DOCX/PDF a SHA-256 e preserve accessibility, rendered-page, localization, workflow-security e release-QA evidence.

Qualquer material change após freeze exige supersession, regeneration, re-hashing e re-review dos gates afetados.

Chapter 32 — Implementation roadmap e release-time reverification

Implemente em fases: applicability/inventory; governance/notices; rights/consent; disclosure exceptions; vendors/platforms; security/incidents; assurance; metrics; continual improvement.

Antes da publicação, verifique 20 U.S.C. § 1232g, 34 CFR Part 99, Department of Education FERPA source materials e overlays expressamente citados. Publicação permanece sequencial após Manual 37 e exige todos os objective release gates em verde.